

WHO IS A CITIZEN?

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A citizen is a person who is a legal or a bonafide member of and owes allegiance to a particular country. He resides in which he enjoys full civil and political rights and will be ready to put his life at stake in defence of its territory. When occasion calls for that, it can therefore stand that in a country, not everybody that resides in its territory is a citizen. Foreigners are never citizens of a country they reside unless they naturalize.

HOW TO OBTAIN NIGERIAN CITIZENSHIP

The 1999 Constitution of Nigeria outlines the following methods of acquiring Nigerian citizenship.

(1) By Birth: citizenship by birth means every person born in Nigeria before the date of independence or whose parent or any of whose grandparents belong to a community is an indigenous to Nigeria.

(2) By Registration: citizenship by registration means if a woman is married to a person of another country or nationality, she can acquire the citizenship of the husband's country through registration.

(3) By Naturalization: somebody can become a citizen of a country where he lives through registration. This is possible if he can satisfy the constitutional requirement for naturalization. For example if he stays for more than ten years in a country. If he pays his taxes as of when due etc.

(4) Honorary citizenship: an individual can be honored with the citizenship of another country. This is made possible if the individual distinguished himself or herself in a particular area of recognition.

(5) By conquest: citizenship by conquest happens in a situation whereby one country conquers another in battle and decide to annex such a defeated country as part of its territory.

APPRIMATION OF CITIZENSHIP OR HOW CITIZENSHIP CAN BE DEPRIVED.

- (1) Disloyalty :- If the person is adjudged by the court of ~~the~~ competent jurisdiction or properly constituted tribunal of being disloyal to the government of the country either by what he or she does or says.
- (2) Imprisonment :- If such a person has within a period of seven years after becoming a naturalized citizen been sentenced to imprisonment for a term not less than 3 years.
- (3) Sabotage :- If it is discovered that such a person has any connection with any country regarded as an enemy of a country.
- (4) Dual citizenship :- If it is discovered that such a person did not renounce the citizenship of another country other than his country of nativity which he is holding.
- (5) False Declaration :- If there is a fundamental breach of the citizenship agreement binding him. e.g. False declaration.

DUTIES AND OBLIGATION OF A CITIZENSHIP

- Duties means those things a citizen is expected to do. For the up keep of government and for the state to continue to perform its function to the citizens.
- (1) Abidance :- Every citizen is expected to obey all the rules and regulation of his country irrespective of his position.
 - (2) Payment of taxes and rates :- A good citizen is expected to pay all the taxes due to him as at when due from which government can provide him and other essential services.
 - (3) Service to the nation :- A citizen should not be hesitate to serve his nation in any capacity he is capable when called upon to do so.
 - (4) Defence the country :- A citizen should be prepared to defend his country.
 - (5) Honesty :- A good citizen is obliged to exhibit high degree of honesty.
 - (6) Civic Responsibility :- It is responsibility of a citizen to be good.

FEDERAL SYSTEM OF GOVERNMENT

Federal system of government is also known as Federalism. In Federal system of government, power is shared between the central government and its component units which may be also called states, province, local government.

Federalism is the one which Government, powers within the Government or the component region ~~state~~ each state, regions, units government are legally and constitutionally independent and autonomous.

In Federal system of government, in 1999 Constitution spells out that power is shared between the Federal, states, and local government under the exclusive list, concurrent list and the Residual list.

i) The exclusive list are made up of items that are handled by the Federal Government which includes.

- Foreign affairs — Creation of states and
- currency local government
- immigration/emigration — Aviation
- military and arm force — Foreign policies

ii) Concurrent list: concurrent list contains subject which both Federal and States Government legislate upon. This include.

- Education — industry
- Agriculture — Housing
- Tax collection — Road infrastructure
- Health care

iii) Residual list: the residual list on the other hand contains subject where both the state and local government can legislate upon such as follows.

- Health care
- Agriculture
- motor parks
- primary education
- Sanitation, street labeling and numbering market sites and maintenance.

REASONS FOR ADOPTION OF FEDERAL SYSTEM

- (1) Fear of domination of minority groups within a multi ethnic country can give rise to adoption of a Federal system of government. In Nigeria for instance it was such fear of majority ethnic group dominating the minority ones that led to the sudden ~~at~~ overthrow and assassination of major General (LTU) Aguiyi Ironsi in 1946.
- (2) Large population and wide size (geographical area) of a country is another reason for adoption of Federalism.
- (3) Differences in culture, beliefs, religions, customs, languages, ethnicity, tradition or race can lead to adoption of Federalism.
- (4) In countries where there are issues and demarcation between majority and minority groups Federalism become in order to protect the interest of minority groups.
- (5) Federalism is often adopted in order to bring government closer to the citizens or a people and also for easy and effective administration.
- (6) Federalism is also adopted in order to allow for diverse laws that will suit the divergent groups, communities and cultures within a country.

PROBLEMS OF FEDERALISM IN NIGERIA

- (1) Federalism through division of the country into sections (regions) breeds regional state consciousness as opposed to unity or national consciousness and this most times degenerate into secessionist aspirations.
- (2) Federalism is expensive and cost intensive to operate as a result of duplication of functions and offices with accompanying financial implications.
- (3) Federalism often bring about inter-state friction because of differences in opinion among the states, regions and component units.
- (4) Most of the time, there is difficulty in taking quick decision on it requires wide spread consultations especially on subject that fall into the concurrent list.
- (5) In a Federal system there is always disparities in the level of development or component unit or even region because some regions are more endowed.

ADVANTAGES OF FEDERALISM

- (1) ~~One~~ of the major advantage of federalism over the system of government is that it fosters political unity among the federating units. This is because it unites people of diverse cultures, societies, geographical areas, zone religion, history, language and origins.
- (2) Federalism brings government closer to the people especially through the operation of local and provincial government.
- (3) Federalism encourages healthy competition amongst the component units (states) regions as they develop competitively.
- (4) Federalism encourages even development of all federating regions.
- (5) Since power is not over concentrated in a single authority, the emergence of a supreme dictator is prevented.
- (6) Federalism guarantees wider consultation on matters made before any crucial/important decision is made.

DISADVANTAGES OF FEDERALISM

- (1) Dual loyalty: in a federal system of government citizens first see themselves as citizens of the state first. before the federation and as such are usually loyal to their states first before federation.
- (2) unhealthy competition among the states of the federation. in a bid to ensure even development. some state or the federation usually engage in unhealthy competition and unnecessary duplication of need.
- (3) There is usually the problem of ethnicity in a federal federation. this is especially so in Nigeria with many different ethnic groups. any one that happen to get to power usually uses such position to favour citizens from his ethnic region even at the expense of meritocracy.
- (4) Struggle for the central of ~~government~~ ^{political} power at the center especially in Nigeria has led to so many many avoidable political conflict with attendant losses of lives and property.
- (5) Difficult in amending the constitution because the constitution of federal systems of government is supreme and rigid. It cannot be amended easily.

(A) CONFEDERAL SYSTEM OF GOVERNMENT.

Confederal system of government is a kind of government whereby two or more sovereign state or (countries) come together (unite) to form a loose union. These countries may come together because of political, economic, common interest they face. These confederating states already have their own well defined form of government. National identities, common force, political system and other pure military forces.

ADVANTAGES OF CONFEDERAL SYSTEM OF GOVERNMENT:

- (1) One major advantages of confederation is that member states and their citizen do not lost their identity and sovereignty rather they retain it even though they confederate.
- (2) The chances for one member of the component states landing over or dominating others is technically avoided and reduced in a confederation.
- (3) Confederation brings weak and small sovereign countries together in union which make them strong enough to ~~be~~ or formidably against any external attacks or aggression on any of them.
- (4) Confederating state adopt a common foreign policy which help them to speak with one voice and are respected better than when they would be speaking as one separate nation.
- (5) Confederal systems encourage healthy competition against member countries which ultimately lead to rapid development.

DISADVANTAGES OF CONFEDERAL SYSTEM

- (1) In confederal system major function of state powers are reserved exclusively for the component state rather than the central government.
- (2) The fact that sovereign state never began to right to secede any time they so wish render the central government fragile and unstable.
- (3) The weak central government in confederation makes it unpopular, politically unstable and counterbalancing.

- (4) Because of Confederating center reserve loyalty to their sovereign Nations of origin, political unity is not guaranteed rather it encourages disintegration.
- (5) Confederation does not ensure even development therefore political interest and leanings vary.

DIFFERENCES BETWEEN FEDERAL AND CONFEDERAL SYSTEMS:

<u>FEDERATION</u>	<u>CONFEDERATION</u>
(1) The states are not independent of the Federation	The Confederating states are independent
(2) The states of a Federation do not have the right of secession.	The Confederating states have the right of secession and can secede at any time.
(3) The Federation state depends on the Federal Government for survival	The center depends on the Confederating states for sustainability
(4) The Federal Government legislate for the whole country and the component unit of the Federation are bound by the decisions of the Federal Government	The independent states legislate for themselves and are not bound by the decisions of the Confederation
(5) Any disagreement between the Federal Government and any of her component cannot lead the dissolution of the Federal Government	Any disagreement between any of the Confederating states can lead to the dissolution of the Confederation.

STRUCTURE OF FEDERATION IN NIGERIA

The Federal system in Nigeria is structured into three tiers of which are the Federal, states and the local government areas. The president is at the center and he is the President and the Commander in Chief of the arm force of the Federal Republic.

of Nigeria. (8)
The president is the chief security officer of the country. He works with his ministers who he usually appoints from the thirty six states of the Federation and the F.C.I. Each state of the Federation must have at least one minister on the Federal Executive Council. At the Federal level also the legislative and the Judiciary. The legislature are made up of Senators (three (3) from each state and one from the F.C.I) and the House of representatives which is the lower House made up of 360 members. The National Assembly makes laws for the whole country aside other functions. The Judiciary at the centre is headed by the Chief Justice of the Federation who sits in judgement at the Supreme Court of Nigeria.

RIGHTS AND OBLIGATION OF CITIZENS (2)

Rights may be defined as certain privileges that every citizen so does to enjoy in a country irrespective of sex, tribe or creed. These rights are natural, civil, political and legal. These rights remain privilege only as long as the state recognizes them and prepare to protect them no matter the words used in guarantee these rights which spring in most written constitution.

Obligation: Obligation involves the citizen moral consideration in the discharge of their civil action to make government more efficient.

~~However,~~

FUNDAMENTAL HUMAN RIGHTS ARE AS FOLLOWS

- (1) Right to life
- (2) Right to Freedom from torture, inhuman or degrading punishment
- (3) Right to Fair hearing
- (4) Right to Freedom of thought, conscience and religion
- (5) Right to private and family life
- (6) Right to Freedom from deprivation of personal liberty
- (7) Right to ownership of property
- (8) Right to vote and be voted for in any given elections
- (9) Right to work and receive commensurate compensation
- (10) Right to Freedom of movement

CONDITION UNDER WHICH THE RIGHT OF A CITIZEN CAN BE PROPERLY PROTECTED AND GUARANTEED

- (1) An independent and impartial Judiciary which a citizen can run to for protection whenever his right are infringed upon
- (2) If freedom of the press is guaranteed, the press will fearlessly protected and safeguard the right of a citizen.
- (3) The right of a citizen will be protected and safeguarded better in a democratic state than in a totalitarian and Fascist state.
- (4) Clear declaration of the Fundamental human right in the constitution is a necessary condition for the protection and guarantee of the right of a citizen.
- (5) An atmosphere of peace and order in a country is a necessary condition for the protection of a citizen's right.

Limitations To Rights Of A Citizens Or

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How Your Rights Can Be Denied.

- (1) A citizen may be denied his right to life if he is ~~condemned~~ condemned to death as a result of murder, armed robbery.
- (2) A citizen may be denied some of his right if he is detained by law.
- (3) The laws of especially Declaration of ~~emergency~~ ^{curfew} in times of emergency is another condition that may limit the right of a citizen especially his movement.
- (4) Police for the interest of peace and ~~other~~ order can ban public assembly, procession and demonstration which will deny a citizen his right of assembly and association.
- (5) Serving prison terms will definitely loss some of his fundamental human right.
- (6) A citizen with unsound mind suffering from insanity will be deprived some of his rights if he is restricted in the interest of other citizens.

SOME OF DUTIES AND OBLIGATION OF A CITIZENS

- (1) Good Abidance: every citizen is expected to obey all the rules and regulation of his country irrespective of his position.
- (2) Loyalty: every citizen owes loyalty to the government his community and even to himself as one of his duties.
- (3) Payment of taxes: a good citizen is expected to pay all the taxes due to him as at when due. ~~for~~
- (4) Defense the country
- (5) Service to the nation
- (6) Care for the public properties
- (7) civil Responsibility
- (8) Honesty.

A constitution is defined as a body of agreed ~~rules~~ rules and principle that state how the powers of government of a country are given and how these powers are to be exercised.

Constitution can also be defined as extended a basic framework of Fundamental Law of the land by so doing, it checks and sets the limits not only to the actions of government but also to the actions of every citizens.

TYPES OF CONSTITUTION

- (1) Written constitution
- (2) Unwritten constitution
- (3) Rigid constitution
- (4) Flexible constitution
- (5) Federal constitution
- (6) Unitary constitution

(1) ~~Unitary~~ ^{Written} constitution is written constitution is defined as a document or set of document establishing the selection of rules embodied in a document in which the fundamental principles concerning the organization of a political system, power of its various agencies are written down and codified.

ADVANTAGES OF WRITTEN CONSTITUTION OR WHY COUNTRIES ADOPT WRITTEN CONSTITUTION

- (1) Proper documentation: It allows for proper documentation especially Fundamental human right.
- (2) It allows the Fear of domination: It protects the minority interest against the domination by the majority.
- (3) Procedure for amendment.
- (4) Provide a means of assessment.
- (5) For easy reference. Example Judges in the bench can easily turn to it.

DISADVANTAGES OF WRITTEN CONSTITUTION (12)

- (1) It can discourage reform: the process of amendment can take a very long time and this may discourage necessary reforms.
- (2) Written constitution are generally rigid. They are not easily adapted to changing circumstances.
- (3) Types of government: a written constitution may not fully accommodate different types of government. For instance, a unitary form of government.
- (4) Change cannot be effected quickly as the process of amendment may not be effected quickly as the possible change can if it does not favour a political tension. This may result in cause dissatisfaction and bad blood within the political system.
- (5) Tendency to cause political tension: this may result in if it does not favour a political tension. This may result in cause dissatisfaction and bad blood within the political system.

UNWRITTEN CONSTITUTION

Unwritten constitution it is defined as the one in which the fundamental principles of the organisation and powers of a government are not documented in one document: it is usually a combination of Statutes, judicial principles, customs and conventions which guide the operation of the government.

ADVANTAGES OR MERITS OF UNWRITTEN CONSTITUTION

Merits

- (1) It is flexible: it does not require special procedure for its amendment. It can be done in the same way ordinary laws are made.
- (2) It can be changed quickly: since it is flexible, it can be changed as quickly as possible as it may be.
- (3) Few individual cases: cases involving individuals, institutions etc may not be as frequent as in written constitution.
- (4) Quick decision: are easily made and taken too easily.
- (5) Easy to interpret: it is flexible and not rigid and so the constitution can easily be interpreted.

DIFFERENCES OR ELEMENT OF UNWRITTEN CONSTITUTION; (13)

- (1) No checks and balances; unwritten constitution does not have checks and balances which are usually entrenched in written constitution.
- (2) Arbitrary government - This could be made possible during exercise of power and functions by political leaders.
- (3) It can easily encourage arbitrary changes; since the Parliament is Supreme unwritten constitution creates way for them to act arbitrary, the have power to manipulate and change the constitution easily.
- (4) No ease for reference; it cannot be easily turned to or studied the way we study a written constitution.
- (5) Violation of Rights: Lack of codification of Fundamental Rights or citizens undermines the ability to seek redress when rights are violated.

RIGID CONSTITUTION

If rigid constitution is defined as the one that is very difficult to amend or change. It requires special process or a complicated method before it can be amended or change. Most written constitutions like USA, Canada, and India.

ADVANTAGES OF RIGID CONSTITUTION

- (1) Enhancement of individual's right - These rights are not subject to arbitrary change by the government when change is sought.
- (2) Political stability: It makes way for political stability in a country. This is because of the laid down procedure for constitutional changes.

- (3) Reduction of violent or revolutionary intentions: it reduces violent or revolutionary intentions: it minimum.
 - (4) It is a check: rigid method of amendment is a check against rash and hasty decision. Issues have to be properly examined before actions are taken on them.
 - (5) It serves as a restraint: rigid constitution restrains the conspicuous politicians from manipulating or interest.
- ↳ ISRAEL VARIANTS OF RIGID CONSTITUTION
- (1) Delay to rapid development
 - (2) Abuse of right democratic right of abuse.
 - (3) ~~Completed~~ complicated method of people may be
 - (4) Innovations rigid constitution are resistant to change
 - (5) slow economic growth. the amendment is slow.

Flexible Constitution

Flexible constitution is defined as the type of constitution that is easy to amend. It is the method as that of the passing of ordinary laws.

ALL VARIANTS OF FLEXIBLE CONSTITUTION

- (1) it can easily be change
- (2) Decision making: It helps government to take a quick decision ad action.
- (3) Introduction of new laws: laws can easily be with new ones.
- (4) It can easily meet people's need. The need and operation of people can easily be met because of the ease in amending the constitution.

DISADVANTAGES OF FLEXIBLE CONSTITUTION

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- (1) Manipulation: The provision of the constitution can easily be manipulated by powerful leaders.
- (2) Unsuitable For a Federal Set up: This is because the rights of autonomy of some states may be jeopardized by some federal reforms.
- (3) Rights of individuals: Fundamental right of individual may be infringed upon and may increase the fears of the minority and inter-ethnic disharmony.
- (4) Differences or different interests and opinions: but could be suppressed.
- (5) Sectional interest: a section of the country can use it to influence or position to amend the constitution to achieve sectional interest.

FEDERAL

CONSTITUTION

In Federal constitution is the one which divides powers or political powers to the different tiers of government in a particular country. For example, the central, state and local govt. The powers of each tiers are properly defined and derived from the constitution. The autonomy of each units is therefore guaranteed.

ADVANTAGES OF FEDERAL

CONSTITUTION

- (1) Power sharing: Powers are shared between the center and state components.
- (2) Political participation: This extends to the protection of individuals' right. The provision is made to protect the majority and the minority.
- (3) Duplication of functions: Functions are duplicated meaning the avenue for employment opportunities in the system.
- (4) Unity in diversity: This is achieved despite the differences in tribe, culture, languages, beliefs etc. Federal constitution makes for unity in diversity.
- (5)

DISADVANTAGES OF FEDERAL CONSTITUTION (16)

- (1) To expensive to operate. Federal Constitution is too expensive to operate and maintain. It is as a result of duplication of functions.
- (2) Rigid constitution. Federal Constitution is rigid making it difficult to amend. Amendment of the constitution involves about $\frac{2}{3}$ of the Parliament especially supporting it.
- (3) State Regionalism. People pay loyalty more to their states or regions than to the National Government. To them state come first before the National Government.
- (4) Secession. A section of the country may have feelings of seceding and would want to secede on a break away. The minority might feel regional issues of minority in the areas of provision of infrastructure, employment opportunities that can affect the unity of a country.
- (5) Issues of minority in the areas of provision of infrastructure, employment opportunities that can affect the unity of a country.

UNITARY CONSTITUTION

In a unitary constitution, all powers are concentrated in the hands of a single central authority or government. The constitution recognizes the sole authority of the central government. In some countries like Britain, Italy, France, Prussia, etc. in some countries like Britain, Italy, France, Prussia, etc. the components of the unitary constitution.

ADVANTAGES OF UNITARY CONSTITUTION

- (1) Development. The development of the various unit are even uniform because the centre decide for all.
- (2) Unity. The concentration of powers in the hands of the central government makes it possible for it to enforce unity in the country.
- (3) Changes are easily made. Changes of the system can easily be made in the system for example in the areas of infrastructure and the economy.
- (4) Cost saving. Not many workers are involved and so the cost of running government is reduced.

DISADVANTAGES OF UNITARY LEGISLATION (12)

- (1) Homogeneous society & unitary constitution is only suitable for a country that is homogeneous in ethnic composition, culture, languages etc.
- (2) Emergence of a dictator: a unitary constitution can produce a dictator. This is because all powers are concentrated in the hands of the central government.
- (3) Concentration of power: in one arm of government misuse of power can lead to abuse of power.
- (4) Fundamental human rights: the right of individuals in the system could be denied.
- (5) Lack of care for the masses: the centre may not be responding to the problems and needs of the people.

Principle of Rule of Law

Principle of rule of law emphasises that every citizen irrespective of rank, position or status should be equal before the law. There should be no man should also apply to the poor man all should be equal before the law.

There should be no preferential treatment of any kind if the law must be effective, those whose behaviour must be made and delivered without fear or favour.

Principle of Impartiality Before the Law

This principle emphasises that the law should be applied without any bit of prejudice and favouritism. It also implies that no one should be ~~exposed~~ punished for alleged offence unless the due process of the law has been followed in finding such person guilty.

Principles of Natural Rights of Man

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This implies that the natural right of man should be granted by the state to her citizens. The law should be ~~the~~ ^{the} natured with the inalienable because it was not given by man but God.

Problems of Rule of Law in Africa

- i) Diplomatic immunity
- ii) period of emergency
- iii) existence of administrative and special court and tribunal
- iv) lack of judicial independence
- v) illiteracy, ignorance and poverty.

Reasons in which Rule of Law could be maintained in Africa:

- i) Public enlightenment of rule of law
- ii) dealing with people that violated the law
- iii) independence of the judiciary should be maintained and protected.
- iv) Removal of immunity clause on President and Governors so as to engage fully prosecution.